

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

between the parties is not required to state a cause of action for accounting. All that is required is that some relationship exists that requires an accounting.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs allege facts sufficient to state an accounting cause of action. (Fam. Code, §§ 712, 1101.) Accordingly, the demurrer is overruled as to the sixth cause of action.

In sum, the demurrer is overruled as to the first through fourth and sixth causes of action and sustained with leave to amend as to the fifth cause of action. The complaint is also not uncertain and overruled on those grounds. Plaintiffs shall file and serve an amended complaint on or before **August 3, 2026**.

8. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to set aside default is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0056860 ELLIOT, LISA v. VOP SIERRA RIDGE

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3**.

Defendants’ Demurrer to Complaint

Defendants demurs to plaintiffs’ complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action and the third and fourth causes of action are duplicative. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)